IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

C.A. (CAA) No. 80/BB/2017
Under Section 230 to 232 of the Companies Act, 2013
Order delivered on: 12th **December, 2017**

IN THE MATTER OF
SCHEME OF AMALGAMATION
OF
SHETRON METROPAK PRIVATE LIMITED
with
SHETRON LIMITED

M/s. Shetron Metropak Private Limited
Plot No.1, Bommasandra Industrial Area
Hosur Main Road
Bengaluru-560099 - **Applicant / Transferor Company**

Coram: Hon'ble Shri RatakondaMurali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Parties Present : Mr. Parameshwar G. Bhat
Practicing Company Secretary
Representing the Applicant Company

Per: **Hon'ble Shri Ashok Kumar Mishra, Member (Technical)** – Author

Heard on: 07.11.2017, 22.11.2017, 06.12.2017

ORDER

This Application is filed on behalf of the Applicant Company i.e. M/s. Shetron Metropack Private Limited praying to order for dispensing from holding of meeting(s) of the Equity Shareholders& Unsecured Creditors of the Applicant Company for considering the scheme of Amalgamation where under Shetron Metropack Private Limited (Applicant/Transferor Company) to be merged with Shetron Limited (Transferee Company). The scheme of amalgamation shown in **Annexure –B.**

The averments made in the Company Application are briefly described hereunder:-

The Applicant Company seek an order for dispensing from holding the meeting of the Shareholders and Unsecured Creditors of the Applicant Company for approving the Scheme

of Amalgamation of the **SHETRON METROPAK PRIVATE LIMITED** (Applicant / Transferor Company) with **SHETRON LIMITED** (Transferee Company).

It is further averred in the Application that the Applicant/Transferor Company was incorporated on 01st December, 2005 under the provision of the Companies Act, 1956 in name and style of "Shetron Metropack Private Limited" having CIN bearing No. U25205KA2005PTC037829. The Registered office of the Applicant Company is situated at Plot No. 1, Bommasandra Industrial Area, Hosur Main Road, Bangalore-560 099, Karnataka.

The Main Objects of the Applicant/Transferor Company as set out in its Memorandum of Association inter alia includes, as follows:

i.) To carry on in India or elsewhere the business of manufacturers, extruders, converters and/or processors, trader of packaging materials products, caps, twist caps of every type, description, design and kind used in all forms of packaging and whether made of metals, papers, boards, polythene, polypropylene, PVC, other plastic, aluminium foil, cellophane, wood, glass or other materials, derivatives and any business related hereto.

ii.) To carry on in India or elsewhere the business of printing, by flexographic, retrogravure photo-offset, litho-offset, letterpress, silk screen and/or any other process, of packing, advertisement and display materials, calendars, designs, other materials and artistic reproduction and/or laminating, coating, waxing, bags, drums, wrappers, strips, components or any other form of packaging or other products, articles or commodity and to carry on in India or elsewhere the business of manufacturing articles for display, decoration, stationery or any other use.

iii.) To carry on in India or elsewhere the business of designer, assembler, manufacture, buyer, seller, importer, exporter, installer, traders and dealers in all types of machines, capping machinery, machinery parts, tools and accessories thereof and to carry on the business of providing consultancy services in this line and of manufacturing packaging and printing of metal and other allied

products and to carry on and conduct of workshops, engineering work of every description.

The Copy of Memorandum and Articles of Association of the Applicant / Transferor Company are shown as **Annexure –C.**

The Authorized Share Capital of Applicant / Transferor Company is Rs. 5,00,00,000/- (Rupees five crores) divided into 50,00,000 (Fifty lakhs) Equity Shares of Rs. 10/- (Rupees ten) each and the paid-up Share Capital is Rs. 3,89,00,000/- (Rupees Three Crores Eighty Nine Lakhs) divide into 38,90,000 fully paid up Equity Shares of Rs.10/- each.

The Copy of Audited Financial Statements of the Transferor Company for the financial year ended 31st March, 2017 of the Applicant / Transferor Company is shown in **Annexure-D.**

The Board of Directors of the Transferor Company in the meeting, by resolution dated 30th May, 2017, unanimously approved the scheme of Amalgamation. Certified copy of the Resolution dated 30th May, 2017 passed by the Board of Directors of the Transferor Company is shown in **Annexure A.**

It is also stated in the Application that since the applicant company is not registered under any other statutory authorities like RBI, SEBI etc., there is no requirement of prior approval from any other statutory authorities with respect to the scheme. Further, it is also stated in the Application that the applicant company has no secured or unsecured financial creditors except of trade Creditors as on 31st July, 2017.

The learned PCS filed a Memo dated 20.11.2017 wherein he has filed a certificate of Chartered Accountant certifying that there are only 02 shareholders and 24 Unsecured Trade Creditors as on 31st July, 2017 in the applicant Company. The list of shareholders and unsecured Trade Creditors are shown in **Annexure K and H** respectively along with the memo.

Consent affidavits from the shareholders are produced at **Annexure L** of the Petition and the consent affidavits of the unsecured trade Creditors are produced at **Annexure H** of the Petition.

We have seen the consent affidavit filed by the 02 shareholders and also consent affidavit of 09 Unsecured Trade Creditors having 99.25% value out of 24 unsecured trade creditors.

The applicant company is seeking an order to dispense with the holding of meeting of shareholders and unsecured trade creditors of the applicant company on the ground that there

are only 02 shareholders, 24 unsecured trade creditors and no secured creditors. The 02 shareholders and 09 Unsecured Trade Creditors having 99.25% value out of 24 unsecured trade creditors have given their consent by way of affidavit for the proposed scheme of Amalgamation.

In the result, the Application is allowed and holding of meeting of shareholders and Unsecured Trade Creditors are dispensed with. In any eventuality when the Applicant Company approach this Tribunal for seeking approval of the scheme it would be open for any person who is interested in the scheme of Amalgamation to put forth their contentions before the Tribunal.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RATAKONDA MURALI)
MEMBER, JUDICIAL